

Rwanda 2024 Human Rights Report

Executive Summary

There were no significant changes in the human rights situation in Rwanda during the year.

Significant human rights issues included credible reports of: arbitrary or unlawful killings; torture or cruel, inhuman, or degrading treatment or punishment; arbitrary arrest or detention; transnational repression against individuals in another country; serious abuses in a conflict; unlawful recruitment or use of children in armed conflict by government-supported armed groups; serious restrictions on freedom of expression and media freedom, including threats of violence against journalists, unjustified arrests or prosecutions of journalists, and censorship; trafficking in persons, including forced labor; and significant presence of any of the worst forms of child labor.

The government took some steps to identify and punish officials who committed human rights abuses, including within the security services, but impunity involving civilian officials and some members of the state security forces was a problem.

A nongovernmental armed group, the March 23 Movement, operated in the eastern part of the Democratic Republic of the Congo with government

support and committed numerous human rights abuses including widespread civilian deaths or harm, enforced disappearances or abductions, forcible transfers of civilian populations, torture, physical abuses, and conflict-related sexual violence or punishment. The government did not investigate and prosecute these abuses.

Section 1. Life

a. Extrajudicial Killings

There were several reports the government committed arbitrary or unlawful killings during the year.

There were local press and social media reports that police killed several persons who purportedly attempted to resist arrest or escape police custody. Observers reported cases of police and military personnel killing individuals suspected of theft. According to press reports, police shot and killed a girl, age 13, on her way to school in Rubavu District in October whom they suspected of smuggling goods across the border with the Democratic Republic of the Congo (DRC). There were no public reports of investigations into this or other similar killings.

b. Coercion in Population Control

There were no reports of coerced abortion or involuntary sterilization on the

part of government authorities.

c. War Crimes, Crimes against Humanity, and Evidence of Acts that May Constitute Genocide, or Conflict-Related Abuses

Violence continued in the eastern DRC along the Rwandan and Ugandan border between the DRC armed forces (FARDC) and the March 23 Movement (M23). UN and credible independent analyses confirmed the country continued to support the M23. In June, a UN report estimated there were between 3,000 to 4,000 Rwanda Defence Force troops fighting alongside the M23 in eastern DRC. The UN report also confirmed the FARDC armed and collaborated with the Democratic Forces for the Liberation of Rwanda, an armed group that previously carried out attacks against the country and had long been linked to 1994 genocide crimes.

Reports indicated that during hostilities, the M23 deliberately targeted and summarily executed civilians and committed rape (for additional details, see the Democratic Republic of the Congo report).

Section 2. Liberty

a. Freedom of the Press

The constitution provided for freedom of expression, including for members

of the press and other media “in conditions prescribed by the law,” but the government severely restricted this right. Journalists reported government officials questioned, threatened, and at times arrested journalists who expressed views deemed critical of the government on sensitive topics. Government failure to investigate or prosecute attacks on human rights defenders and journalists led to de facto restrictions on freedom of expression.

There were no official restrictions on individuals’ right to criticize the government publicly or privately on policy implementation and other topics, but laws prohibiting divisionism, genocide ideology, and genocide denial were broadly applied and discouraged citizens, residents, and visitors to the country from expressing viewpoints that could be construed as promoting societal divisions. The government generally did not tolerate criticism of the presidency and government policy on security, human rights, and other matters it deemed sensitive.

The law prohibited speech, writing, or any other act that divided the populace or might set them against one another or caused civil unrest because of discrimination. The crime of “instigating divisions” was punishable by five to seven years’ imprisonment and a substantial monetary fine. The law also prohibited spreading “false information or harmful propaganda with intent to cause public disaffection against the government,” which was punishable by seven to 10 years’ imprisonment.

Authorities used these laws to chill public criticism, silence political dissent, and shut down investigative journalism.

A revised law enacted in 2018 incorporated international definitions of genocide and outlined the scope of what constituted genocide ideology and related offenses. Specifically, the law provided any person convicted of denying, minimizing, or justifying the 1994 genocide was liable to a prison term of five to seven years and a substantial monetary fine. Authorities applied the statute broadly, and there were reports of its use to silence persons critical of government policy. The government generally investigated individuals accused of threatening or harming genocide survivors and witnesses or of espousing genocide ideology.

The law contained provisions that criminalized “humiliation” of religious rites, symbols, objects, or religious leaders, but there were no reports of prosecutions under these provisions during the year.

In November 2023, a resident of Kangondo Village was convicted of divisionism and genocide minimization for stating that government efforts to forcibly relocate villagers from Kangondo to another location with compensation were a kind of “genocide.” The individual was sentenced to 10 years in prison and a fine.

Physical Attacks, Imprisonment, and Pressure

Media professionals reported the government used lengthy interrogations

and direct and indirect threats of arrests and physical violence to silence media outlets and journalists. Several journalists who fled in prior years remained outside the country. Failure to investigate or prosecute threats against journalists resulted in self-censorship.

Censorship by Governments, Military, Intelligence, or Police Forces, Criminal Groups, or Armed Extremist or Rebel Groups

The law explicitly prohibited censorship of information, but observers reported censorship occurred. The laws restricted these freedoms if journalists “jeopardize the general public order and good morals, an individual’s right to honor and reputation in the public eye, [or] the right to inviolability of a person’s private life and family.” Observers stated the government used ambiguities in these statutes to threaten journalists and suppress reporting deemed critical of the government. By law authorities could seize journalists’ material and information if a “media offense” occurred, but only under a court order. Courts could compel journalists to reveal confidential sources in the event of an investigation or criminal proceeding.

Persons wanting to start a media outlet were required to apply with the “competent public organ.” All media rights and prohibitions applied to persons writing for websites. Independent YouTube journalists reported the government used media laws and registration requirements to criminalize

citizen reporting and threatened individuals producing content deemed sensitive or critical of the government. The government refused to recognize as journalists unaccredited persons who conducted interviews and posted them on personal YouTube channels, denying them protections afforded accredited journalists under the law. The law allowed the government to restrict access to some government documents and information, including information on individual privacy and information or statements deemed to constitute defamation.

Observers reported harassment, suspicious disappearances, and the fear of prosecution pushed many journalists to engage in self-censorship.

Journalists reported government officials frequently pressured them to produce news stories that presented the government favorably and avoid news stories that covered governmental or societal problems. Radio stations broadcasted criticism of government policies, including on popular citizen call-in shows; however, criticism tended to focus on provincial leaders and local implementation of policies rather than on the president or ruling party leadership.

b. Worker Rights

Freedom of Association and Collective Bargaining

The law provided for the right to form and join independent unions and employer associations, bargain collectively, and conduct legal strikes, but it

placed restrictions on these rights. For example, a union seeking registration was required to prove its representatives had never been sentenced to prison terms of six or more months. There was a 90-day waiting period before a union was fully registered. The government required any union seeking majority representation in each sector to submit to an inspection of their membership registry and property by the labor administration. Authorities prohibited military, police, and security personnel from joining unions. An employer could refuse a recognized union access to the workplace, although the union could appeal this to the labor inspector. A union had to include a majority of workers in the enterprise. The law protected the right to unionize but did not automatically provide for reinstatement of workers fired for union activity.

A ministerial order defined the implementation of the law and specified guidelines for labor inspections, provided the modalities of electing employee representatives, listed acts considered gross misconduct, determined the core elements of a written employment contract, and defined essential services that could not be interrupted by a strike or lockout. Local and national labor inspectors mediated labor disputes before they could be referred to a court, which could refuse to hear the case. Labor officials encouraged dialogue between employees and employers before involving the labor inspectorate and courts. The law applied to all employees with contracts. The right to collective bargaining was recognized by the law but was subject to restrictions. Collective bargaining was limited

to fully registered unions that had published their articles of association in the official gazette before obtaining legal capacity. The law also gave the government authority to intervene in the settlement of collective labor disputes. In addition, in workplaces with multiple unions or employee organizations, authorities required all the available organizations to work jointly together to conduct collective bargaining. If they failed to agree, the union with the largest number of members automatically assumed the authority to collectively negotiate on behalf of all the workers.

The law and ministerial orders provided some workers the right to conduct strikes, subject to numerous restrictions. The law did not allow civil servants to strike. The law stated that in a labor dispute, employees had the right to strike when the arbitration committee allowed more than 15 working days to pass without issuing a decision, the conciliation resolution on collective dispute was not implemented, or the court award was not enforced. The law further stated all strikes had to be preceded by a notice of four working days. The law stated a strike or lockout could not interrupt the continuity of “essential services” as defined by the Ministry of Public Service and Labor. The ministry defined essential services more broadly than International Labor Organization guidelines to include all modes of transportation, fuel sales, and education, as well as security, health, water and sanitation, and all forms of telecommunications, which severely restricted the right to strike in these fields. Employees and employers were prohibited from exercising a strike or lockout within 10 days preceding or following elections in the

country or during a state of national emergency. The law did not address strikes in the informal sector.

Labor unions were organized into three confederations: 17 trade unions represented by the Rwanda Confederation of Trade Unions, six by the Labor and Worker's Brotherhood Congress, and 10 by the National Council of Free Trade Union Organizations in Rwanda. All three federations were officially independent of but maintained close links with the government.

The right to collective bargaining generally was not respected by the government or employers. The government and employers pressured employees to settle grievances on an individual rather than collective basis. The government did not enforce applicable laws effectively. Penalties for violations were commensurate with those for analogous violations such as civil rights violations but were rarely applied. Many private-sector businesses did not allow collective bargaining negotiations. The government also controlled collective bargaining with cooperatives and mandatory arbitration. No labor union had an established collective bargaining agreement with the government. Collective bargaining occasionally was practiced in the private sector, although there were few recent examples. The International Trade Union Confederation reported the government intervened in the settlement of collective bargaining disputes.

There were neither registered strikes nor reports of unlawful strikes during the year; the most recent recorded strike was by textile workers in 2011. In

some cases, the government acted to resolve labor disputes in workers' favor to avert the threat of a strike. National elections for trade union representatives occurred on regular cycles depending on the trade union. The government usually maintained a significant degree of influence with union leaders.

The law did not specifically protect workers from antiunion discrimination. There were no functioning labor courts or other formal mechanisms to resolve antiunion discrimination complaints, and labor disputes moved slowly through the civil courts.

Forced or Compulsory Labor

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Acceptable Work Conditions

Wage and Hour Laws

There was no official minimum wage. The law stated the Ministry of Labor could establish a minimum wage by ministerial order, but as of December, the ministry had not issued such an order.

The law provided for a standard workweek of 40 hours, although many persons worked up to 45 hours per week. The same law, however, allowed employers to determine a work schedule depending on the nature of the

work. Most workers in the formal sector worked five or six days per week.

Occupational Safety and Health

The law stated employers had to provide for the health, safety, and welfare of employees and visitors, and enterprises were to establish occupational safety and health (OSH) committees. OSH standards were generally appropriate for the main industries in the country. The government did not proactively identify unsafe conditions but at times responded to workers' OSH complaints. Authorities conducted public awareness campaigns to inform workers of their rights and highlight employers' obligation to register employees for social security and occupational health insurance and pay into those benefit systems. Orders from the Ministry of Labor determined appropriate OSH conditions and the establishment and functioning of OSH committees. Workers' right to remove themselves from dangerous situations without jeopardy to their employment was protected by law, but enforcement was lax.

Workers in the subcontractor and business-process-outsourcing sectors were especially vulnerable to hazardous or exploitative working conditions. Statistics on workplace fatalities and accidents were not available, but ministry officials singled out mining as a sector with significant problems in implementing OSH standards. The Ministry of Labor maintained a list of dangerous professions subject to heightened safety scrutiny.

Wage, Hour, and OSH Enforcement

The labor law did not include penalties for noncompliance with minimum wage. Employers were required to enter contracts with their employees, and these contracts had to be written in a language the employee understood. A ministerial order required employers to review their contracts with their employees and to stipulate those contracts complied with labor laws.

Wage, hour, and OSH laws applied to the formal and informal sectors and standards were generally appropriate for main industries in the country. The government did not effectively enforce the law. The number of Labor Ministry inspectors was not sufficient to enforce labor standards effectively. Violations of overtime and OSH standards were common in both the formal and informal sectors. Penalties for violations were commensurate with those for similar violations such as fraud or negligence but were rarely applied against violators.

The law was seldom applied in the informal sector. Families regularly supplemented their incomes by working in small businesses or subsistence agriculture in the informal sector, which included more than 75 percent of all workers, according to the National Institute of Statistics. The law that provided for the creation of trade unions and collective bargaining did not apply to informal sector workers with no employer.

c. Disappearance and Abduction

Disappearance

There were no reports during the year of enforced disappearances by or on behalf of government authorities, but the government did not take action to investigate past high-profile cases. Past high-profile cases were disproportionately made up of individuals who criticized – or were perceived to have criticized – the government, its policies, or leaders.

Prolonged Detention without Charges

The constitution and law prohibited arbitrary arrest and detention and provided for the right of any person to challenge in court the lawfulness of their arrest or detention, but in many cases the government did not observe these requirements. State security forces arrested and detained persons arbitrarily and without due process, and there were no reports of any detainees receiving compensation for unlawful detention during the year.

The law required authorities to investigate and obtain a warrant before arresting a suspect. Authorities were required to serve arrest warrants during daylight hours, but there were reports of police conducting searches and arrests outside of these hours. Police could detain suspects for up to 72 hours without an arrest warrant. Prosecutors were required to submit formal charges within five days of arrest. Police could detain children a

maximum of 15 days in pretrial detention but only for crimes that carried a penalty of five years' imprisonment or more. Police and prosecutors frequently disregarded these provisions and held individuals sometimes for months and often without charge, particularly in security-related cases.

The law permitted investigative detention if authorities believed public safety was threatened or the accused might flee, and judges interpreted these provisions broadly. A judge was required to review such a detention every 30 days. By law, it could not extend beyond one year; however, authorities sometimes held suspects indefinitely at the behest of state prosecutors after the first authorization of investigative detention and did not always seek reauthorization every 30 days.

After prosecutors formally filed a charge, detention could be indefinite unless bail was granted. Bail existed only for crimes for which the maximum sentence if convicted was five years' imprisonment or less, but authorities could release a suspect pending trial if satisfied the person would not flee or become a threat to public safety and order. Detainees were generally allowed access to attorneys of their choice. Observers reported state security forces sometimes held individuals incommunicado and subjected them to interrogation and threats to curtail their exercise of freedoms of speech and association.

The law allowed judges to impose detention of equivalent duration and fines on state security forces and other government officials who unlawfully

detained individuals, but there were no reports during the year that judges exercised this authority.

There were reports of arbitrary arrests, at times accompanied by police beatings. The government reportedly used arbitrary arrests (or the threat of arbitrary arrest) as a tool to intimidate government critics, independent voices, and political opposition members.

Unregistered opposition political parties previously reported authorities detained their officials and supporters, including for lengthy periods.

Human rights advocates reported police regularly rounded up homeless and other needy individuals and subjected them to abusive treatment and unsanitary detention conditions in transit centers before major international events or conferences in the country. Although there was no legal requirement for individuals to carry an identification document (ID), police and the District Administration Security Support Organ regularly detained street children, vendors, suspected petty criminals, and beggars without IDs and sometimes charged them with illegal street vending or vagrancy.

Authorities released adults who could produce an ID and transported street children to their home districts, to shelters, or for processing into vocational and educational programs. As in previous years, authorities held detainees without charge at transit centers for weeks or months at a time before either transferring them to a National Rehabilitation Service rehabilitation center without judicial review or forcibly returning them to their home

areas. Detainees held at transit or rehabilitation centers could contest their detentions before the centers' authorities but did not have the right to appear before a judge. Advocates raised concerns that detainees at transit centers were not adequately screened for human trafficking indicators.

Local officials and state security forces continued to detain and imprison individuals who had previously disagreed with government decisions or policies, although there were no estimates of the number of such detainees by the government, opposition, or nongovernmental organizations.

Numerous individuals affiliated with unregistered political opposition parties remained in detention. At year's end, six members of the unregistered Dalfa-Umurinzi party remained in pretrial detention since their 2021 arrest for alleged "publication of rumors intended to cause uprising or unrest among the population."

Lengthy pretrial detention was a serious problem, and authorities often detained prisoners for months without arraignment, in large part due to administrative delays caused by case backlogs and prosecutors favoring imprisonment over alternatives, even if available in a case. During the year, the government expanded its use of alternative dispute resolution and plea bargaining, which helped reduce the backlog of cases in court and eased the burden of overcrowding in prisons. The law permitted detention of genocide and terrorism suspects until trial. The law provided for pretrial detention, illegal detention, and administrative sanctions be fully deducted

from sentences imposed. There were reports of individuals being subjected to pretrial detention for periods exceeding the maximum sentence for the alleged offense. The law did not provide for compensation to persons who were acquitted.

d. Violations in Religious Freedom

See the Department of State's annual *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

e. Trafficking in Persons

See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Section 3. Security of the Person

a. Torture and Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution and law prohibited such practices, but there were credible reports government officials employed them. The law prescribed 20 to 25 years' imprisonment for any person convicted of torture and lifetime imprisonment for public officials who committed torture in the course of their official duties. In April, the government convicted Innocent Kayumba,

the former director of Rubavu Prison, for assault and murder of a detainee in 2019 and sentenced him to 15 years in prison and a fine. Two other prison officials and seven inmates were also convicted of abuse. None of the accused were convicted of the crime of torture.

Human Rights Watch documented a pattern of abuse and torture in several detention facilities including Nyarugenge Prison, Rubavu Prison, and an unofficial detention center known as Kwa Gacinya. In Kwa Gacinya, Human Rights Watch documented mock executions, beatings, forced confessions, and other forms of torture and abuse dating back to at least 2011. In Nyarugenge, several former detainees alleged being held in a separate part of the prison referred to as “Yordani” where prison officials or prisoners under orders from prison staff regularly forced them into a water-filled container and beat them, according to Human Rights Watch.

There were no reports of judges ordering an investigation into allegations of torture raised at trial regarding coerced confessions or dismissing evidence obtained under torture.

The government took minimal steps to prosecute or punish members of security services who committed abuses or for misconduct. Impunity was a problem, particularly in cases where government opponents were the apparent victims of abuses. Human rights groups alleged intelligence officials acted with impunity. Security services maintained an influential role in the government. The National Commission for Human Rights (NCHR), a

government-funded body, was mandated to investigate allegations of torture, including through site visits to prisons and other detention facilities. In October, however, the Global Alliance of National Human Rights Institutions deferred reaccrediting the NCHR, in part due to the NCHR's claim during the reaccreditation process that there were no cases of torture in the country.

b. Protection of Children

Child Labor

See the Department of Labor's *Findings on the Worst Forms of Child Labor* at <https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings/>.

Child Soldiers

The Secretary of State determined Rwanda provided support to the M23, an armed group that recruited or used child soldiers during the period of April 2023 to March 2024. See the Department of State's annual *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Child Marriage

The legal minimum age for marriage was 21; authorities strictly enforced this requirement. Anecdotal evidence suggested child marriage sometimes occurred in line with traditional norms in rural areas and refugee camps but

rarely in urban areas and not with government recognition.

c. Protection to Refugees

The government cooperated with the Office of the UN High Commissioner for Refugees (UNHCR) and other humanitarian organizations in providing protection and assistance to refugees, returning refugees, or asylum seekers, as well as other persons of concern.

Provision of First Asylum

The law provided for the granting of asylum or refugee status, and the government had a system for providing protection to refugees. The government did not issue refugee status determinations to the majority of asylum seekers during the year, significantly affecting access to asylum. During the year, the government hosted thousands of newly arrived Congolese asylum seekers at a transit center and other refugee camps but did not provide them with legal asylum or a refugee status determination.

Resettlement

The government assisted the safe, voluntary return of refugees to their countries of origin and sought to improve local inclusion of refugees. In 2019, the government, UNHCR, and the African Union signed a memorandum of understanding to set up an Emergency Transit Mechanism for evacuating refugees from Libya. The mechanism provided a framework

for the country to temporarily host these individuals, who would eventually be resettled in third countries, helped to return to countries where asylum had previously been granted, helped to return to their home countries, or granted permission to remain in Rwanda.

d. Acts of Antisemitism and Antisemitic Incitement

There was a very small Jewish population, consisting entirely of foreigners; there were no reports of antisemitic incidents.

e. Instances of Transnational Repression

There were credible reports the government – directly and through others – engaged in acts of transnational repression, exhibiting a pattern of intimidating or exacting reprisal against individuals outside its sovereign borders, including political opponents and members of the diaspora.

Extraterritorial Killing, Kidnapping, or Violence or Threats of Violence

The government was alleged to have killed or kidnapped persons or used violence or threats of violence against individuals in other countries for politically motivated reprisal in previous years and did not publicize any investigations into such allegations during the year.

Threats, Harassment, Surveillance, or Coercion

Human rights organizations reported citizens living overseas experienced digital threats, spyware attacks, and family and personal intimidation and harassment. Advocates claimed the government applied these measures to put pressure on individuals who threatened government interests.

Advocates continued to report the government used surveillance tools to target critics both at home and abroad. Credible reporting from rights groups indicated the government used Pegasus spyware on political opponents both domestically and internationally, part of a pattern of surveillance against dissidents, journalists, and potential political adversaries.

Misuse of International Law Enforcement Tools

There were credible reports the government attempted to misuse international law enforcement tools for politically motivated purposes against specific individuals located outside the country. Human rights observers believed the government continued to use tools such as INTERPOL notices to harass opponents outside the country, although there were no specific reports of such efforts during the year.

Bilateral Pressure

There were credible reports that for politically motivated purposes, the

government exerted bilateral pressure on another country to take adverse action against specific individuals and to pressure Rwandan refugees to return home.